

Law & Motion

2. 9:00 AM CASE NUMBER: C22-01164
CASE NAME: ALEJANDRO TORRES VS. B & M TEAR OFF, INC.
*HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT
FILED BY: TORRES, ALEJANDRO
TENTATIVE RULING:

This matter has been reassigned to Department 16 and reset to July 15, 2026.

3. 9:00 AM CASE NUMBER: C22-01284
CASE NAME: DUSTIN GRAHAM VS. ALLIED WASTE SYSTEMS, INC.
*HEARING ON MOTION IN RE: PRELIMINARY APPROVAL AND PAGA SETTLEMENT
FILED BY: GRAHAM, DUSTIN
TENTATIVE RULING:

This matter has been reassigned to Department 16 and reset to July 15, 2026.

4. 9:00 AM CASE NUMBER: C23-02357
CASE NAME: LISA ROSS VS. CHENETTE CARTER
HEARING ON SUMMARY MOTION
FILED BY: ROSS, CHARLIE
TENTATIVE RULING:

Before the Court is Defendant Charlie Ross' Motion for Summary Judgment.

The Motion is **denied without prejudice** as outlined below.

Procedural Background

Plaintiff Lisa Ross filed her initial complaint on September 21, 2023. The operative First Amended Complaint was filed on December 15, 2023. On December 2, 2025, Defendant Charlie Ross sought and obtained a hearing date for the motion for summary judgment/adjudication. The Order set the hearing date for March 12, 2026. It also specifically stated: "You are ordered to file the motion within 7 calendar days of this order." (All caps removed.)

Over two months later, on February 10, 2026, Defendant Charlie Ross filed the instant Motion for Summary Judgment ("Motion").

Legal Standard – Notice

Code of Civil Procedure section 437c(a) provides, in pertinent part: "Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. . . . If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days." (Code Civ. Proc. § 437c(a)(2).) The summary judgment statute does not

specifically address electronic service of notice.

California Code of Civil Procedure section 1010.6, which relates to electronic service of documents, states, in pertinent part that “[a]ny period of notice, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days....” The statute specifically states that this extension does not apply to extend the time for filing: (1) a notice of intent to move for a new trial; (2) notice of intention to move to vacate judgment under Section 663a; or (3) a notice of appeal. (Cal. Code Civ. Proc. § 1010.6 (a)(3)(B)). As a summary judgment motion is not excluded from this list, an extra two days need be added to the notice period for such motions.

Courts have concluded the minimum notice period, plus additional notice depending on the manner of service of the notice of the motion, cannot be waived or reduced by the Court. (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 115 [“The subdivision does not contain any language authorizing courts to shorten the 75-day notice period.”].) (See also *Urshan v. Musicians’ Credit Union* (2004) 120 Cal.App.4th 758, 768 [“[T]he express mandatory language of Code of Civil Procedure section 437c, subdivision (a) makes clear the Legislature intended to deprive trial courts of the power to shorten the notice period for hearing summary judgment motions.”].) The opposing party does not have to show prejudice for the Court to find the notice defective; the notice is invalid unless the opposing party expressly consents to a shorter notice period. (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1267.)

Analysis

Initially, it does not appear to the Court that notice of the Motion was properly provided to Plaintiff. The relevant portion of the Proof of Service (PoS) is below:

8	On July 31, 2025, I served a copy of the accompanying document(s) described herein, to the	
9	recipients stated below.	
10	DOCUMENTS	
11	I. DEFENDANTS NOTICE AND MOTION FOR SUMMARY	
12	JUDGMENTMEMORANDUM OF POINTS AND AUTHORITIES.	
13		
14	RECIPIENTS	
15	Lisa Ross	
16	1260 Turk Street	
17	San Francisco, CA 94115 (510)776-0112	
18	The method of service was as follows:	
19	☐	By personal service to the address(es) listed above.
20	☐	By placing a copy of the document described above for deposit with the United States Postal Service, in a sealed envelope, with postage prepaid, for collection and mailing on the same date following ordinary business practices. I am readily familiar with the business practice of processing correspondence for mailing with the United States Postal Service.
21	☒	By emailing to the address(es) listed above where noted.
22	☒	By faxing to the fax number(s) listed above.

Several problems present themselves upon reviewing the PoS. First, it indicates defense counsel

served the document “[o]n July 31, 2025.” That date is over four months **before** Defendant requested the hearing date for the Motion. It is also over six months **prior** to the date Defendant filed the Motion, which is also the date defense counsel signed the Motion. The statement cannot be accurate.

4 This motion is based on this notice, the attached memorandum of points and authorities, the
5 declaration of counsel, the court file, any evidence presented at hearing, and such further argument or
6 evidence as may be presented at the hearing.
7
8 Dated: February 10, 2026
9
10 Respectfully Submitted,
11 The T. Scott Law Group,
12 Taira Scott
 Taira Scott
 Attorneys for Defendant

Additionally, the PoS indicates the “method of service” was via: (1) “emailing to the address(es) listed above where noted,” and (2) “faxing to the fax number(s) listed above.” The recipient information, however, does not include an email address or a fax number. While there is a phone number listed, there is no indication that the number is a fax number – as opposed to a telephone number. Given that fax numbers are much less prevalent, some indication that the number is a fax would normally be included.

Given the above, there is insufficient evidence to show that the Motion was properly served on Plaintiff.

Even if the Court were to find that the documents were properly served, the Motion was not timely served. As outlined above, the notice of motion and supporting papers must be served on the opposing party at least 83 days (when serve via fax/email) before the hearing. Given the March 12, 2026, hearing date, that means that the latest date the Motion could be served was December 19, 2025. Even if there were evidence the Motion was served the same date it was filed, that would only be 30 days between notice and the hearing – well short of the required 83 days.

“Because it is potentially case dispositive and usually requires considerable time and effort to prepare, a summary judgment motion is perhaps the most important pretrial motion in a civil case. Therefore, the Legislature was entitled to conclude that parties should be afforded a minimum notice period for the hearing of summary judgment motions so that they have sufficient time to assemble the relevant evidence and prepare an adequate opposition.” (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 117-18.) In “light of the express statutory language, trial courts do not have authority to shorten the minimum notice period for summary judgment hearings.” (*Id.* at 118.)

Defendant has failed to show that the Motion was properly and timely served on Plaintiff.

Conclusion

Defendant Charlie Ross’ Motion for Summary Judgment is **denied without prejudice** to requesting a new hearing date and filing/serving the papers as required by the Code.

5. 9:00 AM CASE NUMBER: C23-03011
CASE NAME: ANGEL MONTOYA VS. CITY OF RICHMOND
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER ANSWERS AND ATTENDANCE AT